



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 20 November 2018 and 11 judgments and / or decisions on Thursday 22 November 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 20 November 2018

[Pulfer v. Albania \(application no. 31959/13\)](#)

The applicant, Violeta Pulfer, is an Albanian national who was born in 1967 and lives in Tirana, Albania.

The case concerns the Albanian authorities' handling of domestic accusations made by the applicant, in which she alleged that the man from whom she bought her house, S.N., subsequently assaulted her and made illegal attempts to evict her from that house.

In December 2011, Ms Pulfer and her husband moved into a house in the city of Vlora that she had recently bought from S.N. The house had been built unlawfully but its status was subsequently regularised. In January 2012, S.N. attempted to evict Ms Pulfer from the property. Later that same year, in September, he made a second attempt to evict her, allegedly strangling her with a rope and dragging her around the room and into the walls. Two days later, it appears that Ms Pulfer went to stay at her mother's home in Tirana.

In May 2012, S.N. was charged with the crime of self-administered justice. This charge was dropped in December, in line with Albania's General Amnesty Act, passed the previous month, which prevents the criminal prosecution of offences committed prior to 30 September 2012 and incurring a sentence of fewer than two years.

Following Ms Pulfer's alleged assault in September 2012 the prosecutor ordered a medical exam which found visible marks on her neck resulting from strangulation and haematoma on her head from the impact of a hard object. She was declared unfit to work for nine days. Several days later, a second investigation was opened against S.N., who was charged with inflicting bodily harm. This was subsequently combined with a third investigation, instigated the following month in October 2012, into alleged malicious use of telephone calls, following Ms Pulfer's making a variety of serious accusations against S.N. In February 2013 this joint investigation was discontinued, in light once again of the General Amnesty Act. The Supreme Court upheld this decision in July 2016, following two appeals made by the applicant. Two further investigations launched following action taken by Ms Pulfer were discontinued.

Relying on Articles 2 (right to life) and 6 (right to a fair trial), the applicant argues that the authorities, in their treatment of her allegations of assault, failed in their obligation to protect her. Relying on Article 8 (right to home), she also complains that the authorities failed in their obligation to protect her health, life and property.

[Ognevenko v. Russia \(no. 44873/09\)](#)

The applicant, Aleksey Ognevenko, is a Russian national who was born in 1972 and lives in Zheleznodorozhnyy, Moscow Region.

Mr Ognevenko was a train driver for Russian Railways and was a member of the trade union, Rosprofzhel. In April 2008 the union decided to call a strike after the failure of wage and bonus talks. Mr Ognevenko took part by arriving for work on the day but refusing to take up his duties.

In July 2008 Mr Ognevenko was dismissed for two breaches of disciplinary rules, one of which concerned his participation in the strike. He challenged his dismissal, but in August 2008 the first-instance court dealing with the case found that it had been lawful. Regarding the applicant's participation in the strike, the court referred to the Railway Acts of 1995 and 2003, which prohibited strikes of certain categories of railway worker, including train drivers.

The court also relied on a report by a prosecutor which stated that the strike had led to cancelled and delayed trains and had violated the rights of others. An appeal by Mr Ognevenko was dismissed in January 2009.

Mr Ognevenko complains that his dismissal for taking part in a strike was in breach of Article 11 (freedom of assembly and association) of the European Convention. He also raises a complaint under Article 6 § 1 (right to a fair trial/tribunal established by law).

[Samesov v. Russia \(no. 57269/14\)](#)

The applicant, Aleksandr Samesov, was born in 1987 and lived in St Petersburg before his arrest.

The case concerns his complaint of police ill-treatment and the lack of an effective investigation.

In June 2013 the authorities began criminal proceedings into fraud allegedly committed by the applicant and the following month he was arrested by masked police officers near his car on a street in St Petersburg. The police carried out various investigative measures, such as searching his car and apartment, the same day. Mr Samesov states that from the time he was taken to police custody on 4 July until 5 July 2013 the police officers subjected him to ill-treatment in order to force him to confess to crimes. In particular, he was allegedly punched and kicked in the head and abdomen, nearly suffocated by having a plastic bag placed over his head, struck several times on the torso, kicked in the left kidney and threatened with a gun. According to Mr Samesov, the officers also refused to contact his family and lawyer.

On 5 July 2013 police officers took Mr Samesov to a hospital in St Petersburg where the injuries on him were recorded. According to the medical records, Mr Samesov was admitted as an emergency case and had inpatient treatment for four days. He was diagnosed with a contusion on the left kidney. He also had abrasions and bruising on his abdomen, chest and arms.

The District Court held a hearing in the presence of Mr Samesov and his lawyer on 5 July and remanded the applicant in custody. In August 2013 Mr Samesov lodged a formal complaint concerning his alleged ill-treatment with the St Petersburg Investigative Committee. In September 2013 an investigator ordered a forensic medical examination of the applicant's medical documents, stating that he was in custody and could not appear for the examination in person. The investigator ultimately refused to initiate criminal proceedings, stating that the applicant's allegations of police ill-treatment were contradictory, evidencing his attempts to avoid criminal liability and provide false information to the investigating authorities.

The applicant challenged investigators' refusals five times. Four of the refusals were overruled but in May 2016 the District Court finally dismissed Mr Samesov's complaint in full. His appeal was rejected.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicant complains that he was subjected to ill-treatment by police officers and that the State failed to conduct an effective investigation into the matter.

[Toranzo Gomez v. Spain \(no. 26922/14\)](#)

The applicant, Agustin Toranzo Gomez, is a Spanish national who was born in 1970 and lives in Seville (Spain).

In 2007 Mr Toranzo Gomez, a member of an activist group, occupied a social centre. A court issued an eviction order in November of that year and police officers entered the building.

Mr Toranzo Gomez and another protester had fixed themselves to the floor of a tunnel they had constructed underneath the building so they could not be moved. This included inserting their arm inside an iron tube, which was attached to the floor, and locking their arm in place inside the tube.

The police tied a rope around Mr Toranzo Gomez's waist and tried to pull him out and when that failed they tied the two protesters up to immobilise them. Both men later ended their protest and at a subsequent press conference the applicant described the police's actions as torture.

The authorities charged him with slandering the police officers and in July 2011 he was found guilty and fined. The courts relied on the definition of the word "torture" in the Criminal Code and found that the police officers' actions had been proportionate and fallen short of that standard. They rejected his argument that he had used the word torture in a colloquial sense.

The applicant complains that the domestic courts' decision to find him guilty of slander breached his rights under Article 10 (freedom of expression).

[Asma v. Turkey \(no. 47933/09\)](#)

The applicant, Mehmet Asma, is a Turkish national who was born in 1957 and lives in Istanbul (Turkey).

The case concerns the death of Mr Asma's daughter at the age of 15, in an accidental fire.

In October 2000 fire broke out following work being conducted, without a permit, on land adjoining the building inhabited by the Asma family, with high-voltage power lines passing nearby. Three persons died, including Mr Asma's daughter. On the day of the incident the public prosecutor's office instigated a criminal investigation. An expert assessment drawn up in 2001 showed that the fire had been caused by the works: an excavator had snagged a telephone line, dragging it into contact with a cable laid too close to the building, which had sent an electrical discharge up to the floor where the deceased girl lived. In 2005 another expert assessment engaged in particular the responsibilities of the driver of the excavator, the contractor and Eyüp municipality (Istanbul).

In November 2002 the public prosecutor's office requested the authorisation of the Ministry of the Interior, pursuant to the Law on the prosecution of civil servants and other officials, to initiate investigations against the Mayor of Eyüp municipality and the municipal director of urban planning. That request was rejected by the Ministry on the grounds that the persons concerned had been unable to ascertain the unlawfulness of the works before the accident had occurred. In July 2006 the proceedings against the other defendants became time-barred.

In December 2003 the Regional Court granted the action for damages filed by the Asma family, ordering, *inter alia*, the person responsible for the impugned works, the owner of the excavator and the Turkish electricity transmission company (TEİAŞ) to pay the family damages. The action for compensation filed against the municipality is still pending before the Council of State.

Relying on Article 2 (right to life), Mr Asma complains of his daughter's death, considering that the fire resulted from negligence attributable to third parties as well as to the authorities. He also alleges that the criminal proceedings conducted in this case were ineffective.

[Erduran and Em Export Dış Tic A.Ş. v. Turkey \(nos. 25707/05 and 28614/06\)](#)

The applicants are Mehmet Erduran, a Turkish national born in 1941 and living in Istanbul, and Em Export Dış Tic. A.Ş., a company registered in Turkey. Mr Erduran is Em Export Dış Tic. A.Ş.'s president.

The case concerns a tax audit of the applicant company, including the search and seizure of documents, which resulted in large income tax payments and penalties.

In 2000 the applicant company was paid 1.6 trillion Turkish liras (about 2.9 billion euros at the time) by a state-owned company, the Iron and Steel Company, in settlement of a contractual dispute.

The authorities began a tax inspection of the applicant company, which lasted from August 2000 to May 2002. During the audit tax inspectors seized and sealed various company documents under a court order. The tax assessment found book-keeping and tax payment irregularities by the applicant company, particularly as regards the amount of money it had received from the Iron and Steel Company. Some documents on transactions by its partners were missing and the company had not declared profits from foreign currency investments.

The Tax Office ordered the company to pay large sums in tax and penalties for 2000 and 2001. The applicant company went to court, winning a reduction in the tax for 2001 and an annulment of the provisional income tax for 2000. The courts upheld the penalty payments and either rejected or did not take up the company's arguments that the search and audit had been unlawful. In 2004 and 2005 the applicant company made several payments to the Tax Office in respect of 2000 and 2001.

Relying on Article 8 (right to respect for private life, the home and correspondence), the applicants complain about the search and seizure at their business premises. They also state that the use of the tax assessment report, which they allege was drawn up unlawfully, as the sole evidence against them in the court cases violated their rights under Article 6 (right to a fair trial), and that the tax and penalties breached Article 1 of Protocol No. 1 (protection of property) to the Convention.

[Günana and Others v. Turkey \(nos. 70934/10, 6560/11, 23599/12, 39367/12, and 66687/12\)](#)

The applicants, Turan Günana, Musa Kaya and Halil Gündoğan, are Turkish nationals who were born in 1981, 1973 and 1960 respectively. At the relevant time they were in various prisons in Turkey.

The case concerns the seizure by the prison authorities of handwritten documents belonging to the applicants on the grounds, in particular, that they contained information relating to a terrorist organisation. The applicants' appeals were dismissed by the domestic courts.

Relying on Article 10, the applicants complain of a breach of their freedom of expression. Relying on Article 6, Mr Günana also complains of a violation of his right to a fair trial.

[Selahattin Demirtaş v. Turkey \(no. 2\) \(no. 14305/17\)](#)

The case concerns the arrest and pre-trial detention of Mr Selahattin Demirtaş, who at the time of the events was one of the co-chairs of the Peoples' Democratic Party (HDP), a left-wing pro-Kurdish political party.

Relying on Article 5 §§ 1 and 3 (right to liberty and security and right to trial within a reasonable time or release pending trial), the applicant complains that his initial pre-trial detention and its continuation were arbitrary; that the duration of his pre-trial detention has been excessive; and that the relevant judicial decisions contained no reasons other than mere citation of the grounds for detention provided for by law and were worded in abstract, repetitive and formulaic terms. Relying on Article 5 § 4 (right to speedy review of the lawfulness of detention), the applicant complains that his lack of access to the investigation file prevented him from effectively challenging the order for his pre-trial detention. He submits that the proceedings before the Constitutional Court did not comply with the Convention requirement of "speediness". In addition, he complains that his pre-trial detention amounts to a violation of Article 3 of Protocol No. 1 (right to free elections). Relying on

Article 18 (limitation on use of restrictions on rights) in conjunction with Article 5 § 3, he contends that he has been detained for expressing critical opinions about the political authorities and argues in that regard that the purpose of his pre-trial detention has been to silence him. The applicant also alleges a violation of Article 10 (freedom of expression) and Article 34 (right of individual petition).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Gorbulin v. Russia (no. 60289/14)

S.N. v. Russia (no. 11467/15)

Thursday 22 November 2018

[Avagyan v. Armenia](#) (no. 1837/10)

The applicant, Khosrov Avagyan, is an Armenian national who was born in 1946 and lives in Yerevan.

The case concerns the applicant's complaint that he was not able to examine forensic experts in court although their evidence played a key role in his conviction for murder.

The charges arose from the fact that he had inherited an apartment from an elderly lady who had died in January 2007. The initial autopsy found that the lady and her sister, who died at the same time, had suffered from hypothermia. In June the ladies' niece complained that the apartment had actually been left to her in an earlier will and the authorities began an investigation. They ordered post-mortem forensic examinations, which found that both sisters had died of phosphorous poisoning.

Mr Avagyan was charged with fraud and two counts of murder for gain in September 2007 and placed in detention. At his subsequent trial he asked for the experts who had delivered the conflicting autopsy reports to be summoned but the courts repeatedly rejected that request. He was found guilty on two counts of aggravated murder for gain and sentenced to life imprisonment in October 2008. His appeals were all dismissed.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), Mr Avagyan complains that he was not given the opportunity to examine the experts in order to challenge the credibility of their opinions, which were decisive in securing his conviction.

[D.L. v. Germany](#) (no. 18297/13)

The applicant, D.L., is a German national who was born in 1974 and lives in Berlin.

In March 2011 a District Court issued a penal order against D.L., finding him guilty of libel and two counts of assault against S. and B. and sentencing him to 2,400 euros (EUR). D.L. lodged a timely objection against that order. In May 2011 the District Court admitted the victim S. as private accessory prosecutor represented by counsel and granted legal aid to him. It also appointed S.'s lawyer to represent him in the pursuit of his civil claims in the criminal proceedings. In May 2011 the District Court convicted D.L. of libel and two counts of assault, sentenced him to a fine of 1,350 EUR and ordered him to pay 430 EUR in damages to S.

Subsequently, D.L. lodged an appeal on facts and law. In July 2011 the Regional Court informed the public prosecutor of its intention to appoint defence counsel for D.L. The same day a lawyer gave notice that he now represented the applicant, stating that representation by defence counsel had

been necessary also in first instance since the private accessory prosecutor S. had been represented by counsel.

Relying in particular on Article 6 §§ 1 and 3 (c) (right to a fair trial/principle of equality of arms/right to legal assistance of own choosing) alone and taken in conjunction with Article 14 (prohibition of discrimination) Mr. L. complains that the District Court did not appoint, of its own motion, defence counsel for him in the first-instance proceedings.

[Wanner v. Germany \(no. 26892/12\)](#)

The applicant, Dieter Wanner, was born in 1978 and lives in Schutterwald.

The case concerns his conviction for giving false testimony as a witness in criminal proceedings against his former accomplices.

On 23 March 2007 the District Court convicted Mr Wanner of aggravated assault, committed jointly with three unknown accomplices. In July 2007 the conviction became final after Mr Wanner, who had initiated appeal proceedings, withdrew his appeal before the Regional Court.

At the request of the public prosecutor Mr Wanner was heard in September 2007 as a witness by the investigating judge in proceedings against his unknown accomplices. The judge informed him that, as a witness, he had to tell the truth. Mr Wanner maintained that he had not been at the crime scene and consequently could not say anything about those who had taken part in the assault. Subsequently, he was charged with giving false testimony while not under oath.

In first instance before the District Court he was acquitted of those charges. On appeal, he was, however, convicted of giving false testimony while not under oath and sentenced to six months' imprisonment on probation. The Regional Court considered that there had been no danger of a new prosecution for the assault because Mr Wanner's conviction had become final. Consequently, he did not have to be informed of his right not to provide answers by which he might incriminate himself.

Mr Wanner's further appeal on points of law and a constitutional complaint were rejected.

Relying, in particular, on the privilege against self-incrimination and the presumption of innocence, as guaranteed by Article 6, and on his right to freedom of expression, as guaranteed by Article 10, the applicant complains about his criminal conviction for giving false testimony as a witness.

[Konstantinopoulos and Others v. Greece \(no. 2\) \(nos. 29543/15 and 30984/15\)](#)

The 22 applicants are Greek, Albanian and Bulgarian nationals who are detained in Grevena Prison (Greece). The case concerns allegations of ill-treatment inflicted on the applicants by members of a special police anti-terrorist unit during a surprise search of their cells in April 2013 in Grevena Prison.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment) and Article 13 (right to an effective remedy), the applicants complain of having suffered ill-treatment and torture owing, in particular, to inordinate use of Tasers, assault and verbal aggression. They also submit that they were forced to crawl to the sports room, strip and remain standing facing a wall for a long period. Finally, they allege that the investigation into the case had been ineffective and that they had not had any effective remedy to ensure the identification of the officers responsible for the ill-treatment with a view to pressing charges.

Relying on Article 3 read in conjunction with Article 14 (prohibition of discrimination), the applicants complain that the foreigners among their number suffered verbal abuse during the incident and that the authorities had failed to establish whether there had been any racist motivation.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants complain that during the search the police officers had damaged or destroyed several personal belongings.

Jurasz v. Poland (no. 48327/09)

The applicant, Jan Jurasz, is a Polish national who was born in 1960 and lives in Węgierska Górka (Poland).

The case concerns allegations of ill-treatment.

In November 2008 Mr Jurasz was arrested and taken to a sobering-up cell by municipal police officers following a violent dispute with his wife at home. A few days later he lodged a complaint against the municipal police officers for abuse of authority and assault, producing medical certificates in support of his claims.

In September 2015 the police officers were found guilty as charged, given a 12-month suspended prison sentence and fined. The police officers' appeals against that decision were dismissed.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Jurasz complains about his ill-treatment at the hands of the police officers, and about the length and ineffectiveness of the criminal proceedings.

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Dolapchiev v. Bulgaria (no. 66614/11)

Stanchev and Others v. Bulgaria (no. 49925/11)

Chiteishvili v. Georgia (no. 42281/10)

Yanechko v. Russia (no. 46603/11)

Telli v. Turkey (no. 7926/12)

Bosyy v. Ukraine (no. 13124/08)

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